

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Tahreem Khan	Team: Squad #11	CCRB Case #: 202000114	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Wednesday, 12/11/2019 6:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 1/26/2022	Precinct: 14		
Date/Time CV Reported Mon, 01/06/2020 4:56 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 01/06/2020 4:56 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Adham Bright	00797	964405	MTS PCT
2. POM Sean Crowley	28690	964466	MTS PCT
3. POM Ian Wallace	21563	955648	MTS PCT
4. POM Matthew Depalma	14169	965042	MTS PCT
5. SGT Oscar Paredes	03930	920695	MTS PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Adham Bright	Abuse: Police Officer Adham Bright entered § 87(2)(b) in Manhattan.	A . Unfounded
B . POM Sean Crowley	Abuse: Police Officer Sean Crowley entered § 87(2)(b) in Manhattan.	B . Unfounded
C . SGT Oscar Paredes	Abuse: Sergeant Oscar Paredes entered § 87(2)(b) in Manhattan.	C . Exonerated
D . POM Ian Wallace	Abuse: Police Officer Ian Wallace entered § 87(2)(b) in Manhattan.	D . Exonerated
E . POM Matthew Depalma	Abuse: Police Officer Matthew Depalma entered § 87(2)(b) in Manhattan.	E . Exonerated
F . SGT Oscar Paredes	Off. Language: Sergeant Oscar Paredes made remarks to § 87(2)(b) based on his perceived mental health.	F . Exonerated
G . POM Matthew Depalma	Abuse: Police Officer Matthew Depalma threatened § 87(2)(b) with the use of force.	G . Exonerated
H . POM Ian Wallace	Force: Police Officer Ian Wallace used physical force against § 87(2)(b)	H . Exonerated
I . POM Matthew Depalma	Force: Police Officer Matthew Depalma used physical force against § 87(2)(b)	I . Exonerated
J . SGT Oscar Paredes	Abuse: Sergeant Oscar Paredes forcibly removed § 87(2)(b) to the hospital.	J . Exonerated

Case Summary

On January 6, 2020, § 87(2)(b) filed this complaint with the CCRB via phone as a reporting non-witness.

On December 11, 2019, at approximately 6 p.m. at the § 87(2)(b), located at § 87(2)(b) in Manhattan, hotel security called 911 for § 87(2)(b)'s son. According to § 87(2)(b) the caller indicated to 911 that § 87(2)(b) did not take his medications. Police Officer Adham Bright, Police Officer Sean Crowley, Police Officer Ian Wallace, Police Officer Matthew DePalma, and Sergeant Oscar Paredes, all of the Midtown South Precinct, allegedly entered § 87(2)(b)'s hotel room (room § 87(2)(b)) (**Allegations A – B: Abuse of Authority – Entry of Premises, unfounded; Allegations C – E: Abuse of Authority – Entry of Premises, exonerated**). After entering the room, Sgt. Paredes asked § 87(2)(b) if he had taken his medications (**Allegation F: Offensive Language – Other, exonerated**). While interacting with § 87(2)(b) PO Wallace and PO DePalma lifted § 87(2)(b) off the ground and escorted him out of the room (**Allegations G – H: Force – Physical force, exonerated**) so that § 87(2)(b) could be transported to the hospital, as determined by Sgt. Paredes (**Allegation I: Abuse of Authority – forcible Removal to Hospital, exonerated**).

Neither § 87(2)(b) nor § 87(2)(b) were arrested during this incident or were issued any summonses.

NYPD Legal Bureau sent seven positive BWCs from Sgt. Paredes, PO Bright, PO Crowley, PO DePalma, and PO Wallace were received related to this case on March 3, 2020.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Adham Bright entered § 87(2)(b) in Manhattan.

Allegation (B) Abuse of Authority: Police Officer Sean Crowley entered § 87(2)(b) in Manhattan.

Allegation (C) Abuse of Authority: Sergeant Oscar Paredes entered § 87(2)(b) in Manhattan.

Allegation (D) Abuse of Authority: Police Officer Ian Wallace entered § 87(2)(b) in Manhattan.

Allegation (E) Abuse of Authority: Police Officer Matthew DePalma entered § 87(2)(b) in Manhattan.

All officers have BWC for these allegations, however, PO Crowley's BWC captures these allegations best as it captures the entirety of this incident. PO Crowley's BWC footage (**Board Review 14**) shows that at the 01:05 mark, a hotel manager arrived and gave PO DePalma a hotel key card to room § 87(2)(b). At the 01:25 mark, Sgt. Paredes entered the room. At the 04:28 mark, PO Wallace and PO DePalma entered the room as well. At the 06:04 mark, § 87(2)(b) is escorted out of the room by PO DePalma and PO Wallace. Neither PO Bright nor PO Crowley ever entered room § 87(2)(b) during this incident. § 87(2)(b) was escorted to the lobby of the hotel by the 11:10 mark where officers waited for EMS to arrive.

On January 15, 2020, § 87(2)(b) (**Board Review 1**) stated that on December 11, 2019, around 6 p.m., he had smoked a mixed hemp and tobacco cigarette, went home to § 87(2)(b), room § 87(2)(b) in Manhattan, and took a nap for about thirty minutes to one hour. § 87(2)(b) had not consumed any other drugs or had any alcohol prior to this incident. After about thirty minutes to one hour, § 87(2)(b) heard knocking on the door for about ten to fifteen minutes. During this time, officers made statements asking if anyone was inside. § 87(2)(b) responded and stated "goodnight, hello." The officers asked § 87(2)(b) if he could open the door. § 87(2)(b) stated that he had not done anything wrong, and he was not going to open the door. § 87(2)(b) could not recall if he made any statements regarding his mother, but probably stated that his mother was

coming home and that he did take his medication. The officers did not make any additional statements. § 87(2)(b) remained quiet and did not open the door as his mother was not home. After about ten to fifteen minutes, the front door opened. § 87(2)(b) saw two police officers, later identified as PO Wallace and PO DePalma through the investigation, in addition to two uniformed EMTs dressed in dark blue uniforms, and saw two security guards, whom he recognized as hotel security, but did not wish to disclose their names. In a follow-up call on May 25, 2021 (**Board Review 9**), § 87(2)(b) mentioned that no one besides the police officers entered his room.

§ 87(2)(b) (**Board Review 2**), who was not present for this incident. § 87(2)(b) (**Board Review 3**), who is the security manager at § 87(2)(b) — § 87(2)(b), stated that at approximately 6:20 p.m., he saw § 87(2)(b) in the lobby of the hotel. § 87(2)(b) is familiar with § 87(2)(b) as he is a resident at the hotel and had interactions with him in the past. § 87(2)(b) was speaking to someone who was not there. § 87(2)(b) believed that § 87(2)(b) was hallucinating as he was talking to someone who was not there. To ensure that § 87(2)(b) would not harm himself or anyone else, § 87(2)(b) took § 87(2)(b) up to his room on the § 87(2)(b), where he then began to bang on the walls and floor, as well as mumble words that did not make sense. As no one else was inside of the room in which § 87(2)(b) resides with his mother and his knowledge of § 87(2)(b)'s existing mental health history, § 87(2)(b) called 911 and asked for EMS to respond. While § 87(2)(b) was making the call to 911, § 87(2)(b) went into his room on his own. After approximately 20 minutes, PO Crowley and one or two other officers arrived. § 87(2)(b) met the officers in the lobby, notified them that § 87(2)(b) was talking to someone who was not there, was banging on the walls, saying things that were incoherent, and he has a mental health history, which led § 87(2)(b) being concerned for § 87(2)(b)'s safety. The officers stated that they wanted to speak to § 87(2)(b) for his safety and everyone else's safety as well. § 87(2)(b) escorted the officers up to the § 87(2)(b). The officers knocked on the door and asked § 87(2)(b) to open the door. § 87(2)(b) refused to open the door. This conversation went back and forth for a few minutes, but § 87(2)(b) did not hear the entire conversation. § 87(2)(b) did note that § 87(2)(b) did not always answer the officers. At times, he was unresponsive to the officers. The officers stated that they needed to make sure that § 87(2)(b) was okay. § 87(2)(b) refused to open the door and stated that he did not want to go to the hospital, but no one had mentioned him going to the hospital at that point. § 87(2)(b) could not recall how long the gaps were when § 87(2)(b) did not answer the officers. After 15 minutes, a Sergeant or Lieutenant arrived and requested for § 87(2)(b) to unlock the room door as the officers need to go in for § 87(2)(b)'s safety. § 87(2)(b) had gone down to the lobby while § 87(2)(b) another security manager, received authorization from the hotel's General Manager, § 87(2)(b), to open room § 87(2)(b) for the officers, which § 87(2)(b) did. Once § 87(2)(b) went to interact with the officers, § 87(2)(b) was in the lobby of the hotel and did not go upstairs again.

PO Bright (**Board Review 4**) and PO Crowley responded to a radio run for an emotionally disturbed person (EDP) at the § 87(2)(b). Upon arrival, PO Bright and PO Crowley spoke to hotel staff, who escorted the officers to the floor that § 87(2)(b)'s room was on. While PO Bright did not recall many details related to this incident, he remembered that § 87(2)(b) would not open his room door, which led to the officers requesting their supervisor, Sgt. Paredes to respond. Sometime later, Sgt. Paredes, PO DePalma, and PO Wallace responded. PO Bright did not enter § 87(2)(b)'s room, nor did he observe PO Crowley do so.

PO Crowley (**Board Review 5**) did not have much of a recollection related to this incident as he has interacted with § 87(2)(b) three to five times in the past during an unspecified timeframe. PO Crowley did not recall himself or PO Bright enter the room § 87(2)(b) was in.

PO Wallace (**Board Review 6**) was at a footpost outside of § 87(2)(b) Hotel when PO Bright and PO Crowley arrived. They briefed PO Wallace on the nature of the call involving an aided male. He did not recall much else regarding the information he received. He observed PO

Bright, and PO Crowley spoke to hotel security. While PO Wallace did not hear all that conversation or recall many details regarding it, believed that some exigent circumstance took place between § 87(2)(b) and the hotel security, that led to the officers being called to the hotel, which is why the officers needed access to the room. Hotel security officers opened the door to room § 87(2)(b) and PO Wallace was the first to enter to make sure that the environment was safe for § 87(2)(b) and the other officers. Upon entering, PO Wallace saw a paring knife or a similar sharp-bladed object that was an arm's reach away from § 87(2)(b) who made no movements towards the object. Further, PO Wallace detailed difficulty in maneuvering through the apartment due to items packed from the floor to ceiling in a small space, leaving little to no room for even one person to maneuver within the confines of the space.

PO DePalma (**Board Review 7**) did not recall whether the door to § 87(2)(b)'s room was open or closed. Neither he nor the other officers could see § 87(2)(b) from outside of the room, which is why the officers needed to enter to interact with § 87(2)(b). PO DePalma did not recall how the officers' entered the room, but once he entered, he saw the room as being cluttered with objects and bags around the room. The clutter in the room was a dangerous condition because there was limited space to walk anywhere without stepping on something.

Sgt. Paredes (**Board Review 8**) did not recall many details related to this incident. After reviewing the Event Chronology § 87(2)(b) (**Board Review 12**), Sgt. Paredes recalled a few additional details of this incident, but was not sure whether he was confusing this incident with another incident. While Sgt. Paredes did not independently recall entering room § 87(2)(b) where § 87(2)(b) he stated that based on how the call came over noting that § 87(2)(b) was hallucinating and that the hotel called 911, Sgt. Paredes and his officers would not have left the scene without making sure that § 87(2)(b) was okay, which is why he would have needed to enter the room.

Event Chronology § 87(2)(b) (**Board Review 12**) indicates that § 87(2)(b) was hallucinating and has an unknown mental condition. It stated that there were no weapons or injuries, and that § 87(2)(b) was not violent.

The emergency doctrine is premised on reasonableness, not certitude. The doctrine allows the police to conduct a warrantless residential entry without knowing if a crime had taken place inside *People v. Doll*, 21 N.Y.3d 665 (2013) (**Board Review 25**).

§ 87(2)(g)
it is recommended that **Allegations A and B** be closed as **unfounded**.

Event § 87(2)(b) stated that § 87(2)(b) was hallucinating and had an unknown medical condition, which is why the hotel staffed called 911. § 87(2)(b) the hotel security manager who called 911, stated that he observed § 87(2)(b) hallucinating by speaking to someone who was not there, banging the walls, and making incoherent statements, which led him to be concerned for § 87(2)(b)'s safety. Further, § 87(2)(b)'s mother is usually present, but was not on this day—§ 87(2)(b) went into his room alone. After officers responded, § 87(2)(b) conveyed this information to the officers, and another hotel manager authorized the officers' entry into § 87(2)(b)'s hotel room. § 87(2)(b), § 87(2)(g)

It is recommended that **Allegations C, D, and E** be closed as **exonerated**.

Allegation (F) Offensive Language: Sergeant Oscar Paredes made remarks to § 87(2)(b) based on his perceived mental health.

Sgt. Paredes' BWC (**Board Review 15**) captured this allegation. At the 03:15 mark, Sgt.

PO DePalma responded that no one was tasing § 87(2)(b)'s arm.

§ 87(2)(b) (**Board Review 1**) stated that when the officers told him that he had to go with them, § 87(2)(b) sat down and said that he was not going to get up. Two officers picked § 87(2)(b) up from underneath his arms and escorted him out of his room. As he was being escorted out, § 87(2)(b) tried spitting at the officers.

§ 87(2)(b) (**Board Review 2**) learned from her son that after two officers came into her room, they wrestled with § 87(2)(b).

§ 87(2)(b) (**Board Review 3**) was not on the same floor as the officers and § 87(2)(b) so he did not observe physically interact with § 87(2)(b).

EMT § 87(2)(b) (**Board Review 10**) and EMT § 87(2)(b) (**Board Review 11**) were interviewed; however, neither of the EMTs recalled any details related to this incident.

PO Wallace (**Board Review 6**) confirmed that he removed § 87(2)(b) from the room by approaching § 87(2)(b) from his right side and then assisted § 87(2)(b) from his seated position on the ground to a standing position by placing an open hand on § 87(2)(b)'s back, placed in between the shoulder blades to guide him to a standing position and later into to the hallway. PO Wallace did not recall if § 87(2)(b) made any statements while PO Wallace physically interacted with him. PO Wallace noted that § 87(2)(b) was compliant with his removal and did not put up any resistance. PO Wallace handcuffed § 87(2)(b) for his removal from the apartment, however stated § 87(2)(b) was not under arrest. PO Wallace stated that § 87(2)(b) appeared to be incapable of caring for himself and that he fit the description for use of a Mental or Medical assistance response protocol. PO Wallace described § 87(2)(b)'s environment upon arrival as a fire hazard, filled with books, debris, and objects littered all around that made movement inside the apartment hazardous. PO Wallace recalled that § 87(2)(b)'s hygienic status was unkept. EMS arrived later and transported § 87(2)(b) to the hospital.

PO DePalma (**Board Review 7**) saw § 87(2)(b) was on the floor of the hotel room, watching television, with his back propped up against an object. When PO DePalma began interacting with § 87(2)(b) he could not recall if he issued any commands to § 87(2)(b). PO DePalma recalled that § 87(2)(b) was not cooperating with officers by refusing to go to the hospital and not moving. PO DePalma assisted in getting § 87(2)(b) out of the room by grabbing his arms to a guide him into standing position.

An emotionally disturbed person (EDP) is an individual who appears to be mentally ill or temporarily deranged and is conducting themselves in a way that a police officer reasonably believes is likely to result in serious injury to themselves or others. Officers may use force when reasonable to gain control or custody of the EDP or to prevent serious injury or death NYPD Patrol Guide Procedure 221-13 (Board Review 19).

§ 87(2)(b) refused to get up when the officers told him that he had to go with them. After that, the officers grabbed § 87(2)(b) from underneath his arms and escorted him out of the room. PO Wallace testified that he placed a hand on § 87(2)(b)'s back between his shoulder blades to get him to stand up. BWC and PO DePalma's testimony is consistent with BWC which also shows him grabbing § 87(2)(b)'s arm to help him stand up. At no point does the BWC show any wrestling between § 87(2)(b) or the officers, as § 87(2)(b) indicated. § 87(2)(g)

§ 87(2)(b) It is recommended that **Allegations G and H** be closed as **exonerated**.

Allegation (I) Abuse of Authority: Sergeant Oscar Paredes forcibly removed § 87(2)(b) to the hospital.

§ 87(2)(b) (**Board Review 1**) stated that after he was removed from his room, he was taken to the EMTs and was placed in an ambulance. In a follow-up call (**Board Review 9**), § 87(2)(b) stated that he saw the EMTs in the lobby of the hotel.

§ 87(2)(a) PBH §18(6)

§ 87(2)(b) (Board Review 3) was not on the same floor as the officers and § 87(2)(b) so he did not observe physically interact with § 87(2)(b). Earlier in the incident, he did notify the officers that § 87(2)(b) was talking to someone who was not there, was banging on the walls, saying things that were incoherent, and he has a mental health history, which led § 87(2)(b) being concerned for § 87(2)(b)'s safety.

Sgt. Paredes (Board Review 8) reiterated that he did not recall this exact incident but based on the call from the hotel regarding § 87(2)(b) hallucinating and after seeing the state his room was in terms of tight quarters and are a lot of things laying around the room, including medications, Sgt. Paredes would not have been safe to leave § 87(2)(b) in his room. Further, Sgt. Paredes would not have been allowed to leave the location until § 87(2)(b) was examined by medical personnel. Sgt. Paredes stated that it was his decision to remove § 87(2)(b) to the hospital based on all his observations.

An emotionally disturbed person (EDP) is an individual who appears to be mentally ill or temporarily deranged and is conducting themselves in a way that a police officer reasonably believes is likely to result in serious injury to themselves or others, which is when the individual must be taken into protective custody. Once the EDP has been restrained, the individual should be removed to the hospital in an ambulance NYPD Patrol Guide Procedure 221-13 (Board Review 19).

§ 87(2)(g)

It is recommended that **Allegation I** be closed as **exonerated**.

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to one other CCRB complaints and has been named as a victim in one allegation (Board Review 20):
 - § 87(2)(b)
- § 87(2)(b) has been party to one other CCRB complaint and has not been a victim.
- PO Bright has been a member of service for four years and has been a subject in two CCRB complaints and three allegations, none of which were substantiated. § 87(2)(g)
- PO Crowley has been a member of service for four years and has been a subject in two CCRB complaints and two allegations, none of which were substantiated. § 87(2)(g)
- PO Wallace has been a member of service for eight years and has been a subject in six CCRB complaints and 19 allegations, none of which were substantiated. § 87(2)(g)
- PO DePalma has been a member of service for three years and has been a subject in two CCRB complaints and six allegations, none of which were substantiated. § 87(2)(g)

- complaints and four allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) | §§ 86(1)(3)&(4) | § 87(2)(c)

[REDACTED]
 [REDACTED]
 [REDACTED]
 [REDACTED]
 [REDACTED]
 [REDACTED]

Squad: 11

Investigator: Tahreem Khan Inv. Tahreem Khan January 3, 2022
Signature Print Title & Name Date

Squad Leader: Edwin Pena IM Edwin Pena 01/03/2022
Signature Print Title & Name Date

Reviewer: _____

Signature	Print Title & Name	Date
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